

26VECV00903 26VECV00903

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-21

Motion: MOTION TO STRIKE PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES

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Case Number: 26VECV00903 Hearing Date: August 21, 2026 Dept: I

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

COUNTY

OF LOS ANGELES

ATINA PIER,

et al.,

Plaintiffs,

vs.

ASN WOODLAND HILLS EAST, LLC, et al.,

Defendants.

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CASE

NO: 26VECV00903

[TENTATIVE]

ORDER RE: MOTION TO STRIKE PLAINTIFF'S CLAIM FOR PUNITIVE DAMAGES

Dept.

I

HEARING

DATE: August 21, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: February 13, 2026

TRIAL

DATE: None set.

I.

BACKGROUND

This is a landlord-tenant habitability action arising out of Plaintiffs Atina Pier ("Pier"); Sam Salahpoosh ("Salahpoosh"); Naz Gamini ("Gamini"); Tina Nader ("Nader"); and Deborah Bowe ("Bowe") (collectively, "Plaintiffs") tenancy at the apartment complex commonly known as 22122 Victory Blvd, Woodland Hills, CA 91367 and 6644 Glade Avenue, Woodland Hills, CA 91303 (the "Property"). On February 13, 2026, Plaintiffs filed the operative Complaint against Defendants ASN Woodland Hills East, LLC ("ASN"); AvalonBay Communities, Inc. ("AvalonBay"); and DOES 1 through 25 (collectively, "Defendants"), alleging causes of action for: (1) Constructive Eviction; (2) Breach of the Covenant of Quiet Enjoyment; (3) Tortious Breach of Implied Warranty of Habitability; (4) Statutory Breach of Warranty of Habitability (Civ. Code §§ 1941.1 and 1942.4); (5) Breach of the Implied Covenant of Good Faith and Fair Dealing; (6) Breach of Contract; (7) Intentional Infliction of Emotional Distress; (8) Negligent Infliction of Emotional Distress; (9) Nuisance; (10) Violation of Business and Professions Code § 17200 et seq., Unlawful, Fraudulent and Unfair Business Acts and Practices; (11) Negligence; (12) Negligent Training and Supervision; (13) Negligent Maintenance of the Premises; (14) Harassment of Tenants (Civ. Code §§ 1940.2 & 1942.5); (15) Unlawful Retention of Security Deposit; (16) Harassment in Violation of L.A.M.C. § 45.33; (17) Unlawful Collection of Rent; (18) Retaliatory Eviction – Violation of California Civil Code; and (19) Toxic Environmental Mold Tort.

On June 25, 2026, ASN and AvalonBay (hereinafter, "Landlord Defendants") filed the instant Motion to Strike Plaintiff's Claim for Punitive Damages. On August 7, 2026, Plaintiffs filed an Opposition. On August 14, 2026, the Landlord Defendants filed a Reply.

II.

LEGAL

STANDARDS

"Any party, within the time allowed to respond to a pleading may serve and file a notice of motion to strike the whole or any part thereof, but this time limitation shall not apply to motions specified in subdivision (e)." (Code Civ. Proc., § 435, subd. (b)(1).)حح

“The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.” (Code Civ. Proc., § 436, subd. (a); see also *Stafford v. Shultz* (1954) 42 Cal.2d 767, 782 [“Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded”.].)¿

The court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) An immaterial or irrelevant allegation is one that is not essential to the statement of a claim or defense; is neither pertinent to nor supported by an otherwise sufficient claim or defense; or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)¿¿

III.

MEET

AND CONFER

Prior to filing a motion to strike, the moving party is required to meet and confer in person, by telephone, or by videoconference with the party who filed the pleading for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the motion to strike. (Code Civ. Proc., § 435.5.)¿¿

Here,

the Landlord Defendants’ counsel of record, Chelsea C. Yamabe, states that the parties telephonically met and conferred on the issues now raised in the present motion on April 20, 2026; May 21, 2026; and June 19, 2026. (Yamabe Decl., ¶¶8, 11-12.) The parties were unable to reach an informal agreement. (Id.) Thus, the Court finds that Landlord Defendants fulfilled their meet and confer obligations.

IV.

DISCUSSION

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Landlord Defendants move for an order striking the request for punitive damages in the Complaint on the grounds that the Complaint fails to allege any specific facts demonstrating oppression, fraud, or malicious conduct. Specifically, the Landlord Defendants move to strike Paragraph 53, line 25; Paragraph 85, lines 10-11; Paragraphs 87-90, 108, 117, 145, 158, 179, 196, 223, 249; Paragraph 186, lines 22-25; Paragraph 238, line 8; and Prayer for Relief, Paragraph 9.

"In order to survive a motion to strike an allegation of punitive damages, the ultimate facts showing an entitlement to such relief must be pled by a plaintiff." (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.) California Civil Code Section 3294, subdivision (a) authorizes punitive damages upon a showing of malice, fraud, or oppression.

Malice is defined as either "conduct which is intended by the defendant to cause injury to the plaintiff", or "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) "Despicable conduct is conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (Mock v. Michigan Millers Mutual Ins. Co. (1992) 4 Cal. App. 4th 306, 331.) Fraud under California Civil Code Section 3294, subdivision (c)(3) "means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) California Civil Code Section 3294, subdivision (2) defines oppression as "despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (2).)

Punitive damages thus require more than the mere commission of a tort. (Taylor v. Superior Court (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pled in support of punitive damages. (Hillard v. A.H. Robins Co. (1983) 148 Cal.App.3d 374, 391-392.) A "conclusory characterization of [a] defendant's conduct as intentional, wilful and fraudulent [is] [a] patently insufficient statement of oppression, fraud, or malice". (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 865.) Facts must be pled to show that a defendant "act[ed] with the intent to vex, injure or annoy, or with a conscious disregard of the plaintiff's rights." (Silberg

v. California Life Ins. Co. (1974) 11 Cal.3d 452, 462.) "When nondeliberate injury is charged, allegations that the defendant's conduct was wrongful, willful, wanton, reckless or unlawful do not support a claim for exemplary damages; such allegations do not charge malice." (G.D. Searle & Co. v. Superior Court (1975) 49 Cal.App.3d 22, 29.) Conduct that is merely negligent will not support a claim for punitive damages. (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1288.)

The Complaint alleges, inter alia, that on or about July 1, 2024, Pier entered into a valid written rental agreement with Defendants for Unit B316. (Compl., ¶¶13.) Salahpoosh resided in Unit B316 as a member of Pier's household and an authorized occupant. (Id.) On or about January 2025, Gamini entered into a valid written rental agreement with Defendants for Unit B214. (Id., ¶¶15-16.) On or about January 25, 2020, Nader entered into a valid written rental agreement with Defendants for Unit B318. (Id., ¶¶18-19.) On or about January 2024, Bowe entered into a valid written rental agreement with Defendants for Unit H319. (Id., ¶¶21-22.) Throughout Plaintiffs' tenancies, the Property and individual rental units suffered from: recurrent water leaks and moisture intrusion; visible mold and mildew growth; defective plumbing systems that caused ongoing leaks and unsanitary conditions; malfunctioning heating and air conditioning systems; deteriorated kitchen and plumbing fixtures; and severe rodent infestations. (Id., ¶¶4, 30-31, 36-38, 40-42, 54-56, 60-61, 63.) Plaintiffs' repeatedly made complaints and repair requests to Defendants and their agents. (Id., ¶¶5, 7, 14, 57, 62, 64, 69.) Defendants failed to make timely or adequate repairs. (Id.) Defendants and their agents also responded with escalating hostility, negligence, and coercive tactics, after Plaintiffs began raising concerns about the habitability of the Property and their individual units. (Id., ¶¶46, 70.) Agents and staff members acting on behalf of Defendants also engaged in unprofessional, rude, and verbally aggressive communication with Plaintiffs. (Id., ¶47.) As a result, Plaintiffs experienced respiratory irritation, headaches, fatigue, and other health issues that they reasonably believed were linked to the mold exposure and persistent dampness; severe anxiety, insomnia, and chronic emotional distress; having to discard food contaminated by rodent droppings; and having to resort to do-it-yourself pest control methods. (Id., ¶¶42, 51, 58, 65.)

Reading the Complaint as a whole and taking the allegations as true, Plaintiffs fail to allege sufficient facts to support their request for punitive damages against the Landlord Defendants. As shown above, Plaintiffs allege that their individual units suffered from defective conditions including

but not limited to: recurring water leaks and intrusions; plumbing issues; mold and mildew; and rodent infestation. Plaintiffs further allege that the Landlord Defendants were made aware of these defective conditions via repeated complaints and repair orders made by Plaintiffs. Plaintiffs also allege that the Landlord Defendants failed to timely and/or adequately remediate these conditions, despite their knowledge of the defective conditions.

These are the exact kinds of allegations that the court in *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, found to be sufficient to support punitive damages requested on a nuisance claim. (See *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 920.) The operative

Complaint in this case also alleges the Landlord Defendants conduct constituted a nuisance. (Compl., ¶¶152-158.) However, “[a]n employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code § 3294, subd. (b) (emphasis added).)

Here, the Complaint alleges that upon “information and belief,” ASN is the legal owner of the Property and AvalonBay acted at all relevant times as the property manager, operator, and/or controlling entity responsible for the leasing, maintenance, and habitability of the Property. (Compl., ¶¶24-25.) Nonetheless, unlike in *Stoiber*, the Complaint in this instant case fails to allege specific facts that any officer, director, or managing agent of the Landlord Defendants had advance knowledge of any unfit employees and/or authorized or ratified any oppressive, fraudulent or malicious conduct on part of such employees.

V.

CONCLUSION

Defendants ASN Woodland Hills East, LLC and AvalonBay Communities, Inc.’s Motion to Strike Plaintiffs Claims for Punitive Damages is GRANTED with 30 days leave to amend.

Moving parties to give notice.

Dated: August
21, 2026

Hon. Karen Moskowitz

Judge
of the Superior Court